

Ganesh Shankar Tiwari v. State of U.P.

Allahabad High Court · Division Bench · 27 May 2016 · Writ-C No. 25977 of 2016 · **Writ disposed; petitioner relegated to clause 6.5(b) complaint; recovery stayed; restoration on deposit.**

HEADNOTE

A consumer disputing the accuracy of a bill against which recovery has been initiated must complain to the competent authority under clause 6.5(b) of the U.P. Electricity Supply Code, 2005. Disputed questions of fact being involved, the High Court declined to decide the bill, granted one week to complain, directed the authority to decide within two weeks, stayed recovery for four weeks or until that disposal, whichever was earlier, and directed restoration of supply upon deposit.

FACTUAL SUMMARY

The petitioner invoked writ jurisdiction to challenge recovery proceedings initiated by the electricity corporation for outstanding dues, and to contest the correctness of the bill on which that recovery was founded. Counsel for the corporation (respondents 2 to 4) appeared. Supply appears to have been disconnected. No determination of the billing dispute on a statutory complaint had taken place before the writ was filed.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5(b)

bill-accuracy-complaint

HOLDING

Where the consumer disputes the accuracy of the bill and recovery has been initiated, clause 6.5(b) furnishes the complaint before the competent authority. Disputed questions of fact being involved, the writ is disposed with liberty to complain under clause 6.5(b) within one week; the authority shall consider and pass orders in accordance with law within two weeks of the complaint; recovery remains in abeyance for four weeks or until disposal of the complaint, whichever is earlier, and shall abide by that order; upon deposit of the amount, the connection shall be restored forthwith. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE BILL AND THE DISPUTED QUESTIONS OF FACT UNDERLYING THE RECOVERY

Expressly left to the clause 6.5(b) complaint. ¶ 1